

Supplemental Bills are hereby abolished. Where a suit is defective by reason of some imperfection in the Bill, and not in consequence of any event occurring subsequent to its institution, the Court may at any time permit an amendment of the Bill in furtherance of justice, and on such terms as may be proper, for the purpose of altering the allegations in the Bill, or of putting new matter in issue, as well as for the purpose of adding or striking out the names of parties, or of varying the relief prayed, or praying further relief.

Such Order shall be applied for by motion, stating the required amendment, of which motion notice must be served upon the parties or their solicitors, unless dispensed with.

The motion must be supported by affidavit satisfying the Court—

1. Of the Truth of the Amendment.
2. Of the propriety of permitting the Amendment at the particular stage of the Cause under all the circumstances.
3. That the Order will promote the ends of justice, unless these requirements may sufficiently appear from evidence before the Court.

Upon pronouncing such Order for amendment, the Court shall give such directions as to the future conduct of the Cause, in relation to answering such amendments, as also respecting the evidence taken, or to be taken, and in all other respects, as the circumstances of the case may require.

Bills of Revivor, Bills of Revivor and Supplement, original Bills in the nature of Bills of Revivor, and original Bills in the nature of Supplemental Bills, are hereby abolished. When a suit becomes defective, or abates by any event subsequent to its institution, and before final decree, it shall be competent to the Court to direct an amendment of the Record, in order that such defect may be remedied, and the suit continued, and the benefit thereof obtained.

The order for such amendment shall be applied for by motion, specifying the nature of the amendment and the applicant's title to the same.

Notice of this motion must be served on the parties to the suit or their solicitors, unless the Court under special circumstances shall dispense therewith; and it may be made by any person who could have heretofore obtained the desired object by Supplemental Bill, or by any form of Bill by this Order abolished.

1850.
XIII.
Amendment in lieu of Supplemental Bill.

Order, how applied for.

1850.
XIV.
Amendment in lieu of Bills of Revivor, Bills of Revivor and Supplement, and Bills in nature of Supplemental Bills.